

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 8, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE 10	25CV479611	Prakyath Madadi vs Tesla, Inc.	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 10 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	17CV314877	Econergy, Inc. vs Jaspal Singh Deol	Motion: Withdraw as Attorney Good cause appearing, the unopposed motion is GRANTED. The Court will sign the previously submitted Form MC-053.
9:01 LINE 2	21CV389732	Thai Quach et al vs Kristine Carash et al	Hearing: Claim of Exemption of Kristine Carash Ctrl Click (or scroll down) on Calendar 9:01 Line 2 for tentative ruling.
9:01 LINE 3	21CV389732	Thai Quach et al vs Kristine Carash et al	Hearing: Claim of Exemption of Julian Carash Ctrl Click (or scroll down) on Calendar 9:01 Line 2 for tentative ruling.

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Calendar Lines 1 - 4

Case Name: *Manuel Panilag vs Armando Contreras et al*

Case No.: 24CV434290

The following matters are before the Court: 1) Plaintiff's Motions to Compel Response to RTAO Debtor Discovery; 2) Plaintiff's Motions to Compel Further Response to Special Interrogatories, Set One; and 3) Plaintiff's Motion to Declare Armando Contreras ("Contreras") a Vexatious Litigant.¹

I.

Plaintiff's Motions to Compel Response to RTAO Debtor Discovery & Further Response to Special Interrogatories, Set One

This Court previously found that proceedings were stayed on April 28, 2025. As of April 28, 2025, all briefing dates related to these motions had passed, and these motions were set to be heard on April 29, 2025. The stay having been lifted and orders made during the stay vacated, these motions are returned to the *status quo ante* as of April 28, 2025.²

Plaintiff brings multiple motions to compel (form interrogatories, special interrogatories, request for production of documents, and requests for admission) and a request for sanctions. There is a valid proof of service for the motions and Plaintiff attempted to further meet and confer as ordered by the Court, without success. No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rule of Court, Rule 8.54(c).) Failure to oppose a motion leads to the presumption that Defendants have no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Plaintiff has met his burden of proof for each of the motions. Good cause appearing, the motions are GRANTED.

Defendants shall serve verified, code-compliant responses and responsive documents within 15 days of the date of the hearing on this motion and pay Plaintiff sanctions in the amount of \$5,500, also within 15 days of the date of the hearing on this motion. All objections have been waived.

¹ On April 16, 2026, Contreras filed a "Motion for Clarification of Court's March 19, 2026 Order." This "motion" was noticed for May 8, 2026, but was improperly filed without obtaining a hearing reservation for that date. Moreover, the notice filed on April 16, 2026, provides no statutory or other legal basis for the "motion." Accordingly, any purported "Motion for Clarification" is not on the Court's May 8, 2026 calendar, and the Court will not consider such a "motion" at this hearing. To the extent Contreras believes this "motion" may somehow be considered as part of the hearing on the pending discovery motions, he is incorrect. The Court ordered that there shall be no further briefing on these discovery motions both on February 25, 2025 (Minutes, 2/25/2025) and in its March 19, 2026 order.

² Despite the Court's invitation in its order of March 19, 2026, no party has advised the Court that any aspect of these motions has become factually moot.